

State vs Gufran Ahmed on 16 January, 2026

IN THE COURT OF MS. HARSHITA MISHRA
CHIEF JUDICIAL MAGISTRATE, CENTRAL DISTRICT,
TIS HAZARI COURTS, DELHI
CNR No. DLCT020033362014

CIS No. 294792/2016

FIR No. 87/2008
PS: EOW

State Vs. GUFRAN AHMED

U/s: 420, 403, 120B IPC

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JUDGMENT

(a)	CIS No.	87/2008
(b)	Date of offence	Unknown
(c)	Complainant	Sh. Vakeel Ahmed
(d)	Accused	Gufran Ahmed, S/o Late Sh. Tasleem Ahmed, R/o House No. 5410, 3rd Floor, Unchi Gali, Kucha Rehman, Chandni Chowk, Delhi.
(e)	Offence	419, 420, 468, 471 IPC
(f)	Plea of accused	Pleaded Not guilty
(g)	Final Order	Acquitted
(h)	Date of Institution	30.08.2014
(I)	Date when judgment was reserved	16.01.2026
(j)	Date of judgment	16.01.2026

1. Vide this judgment, this court shall dispose of the present case u/s 419, 420, 468, 471 Indian Penal Code filed against accused Gufran Ahmed.

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2. The story of the prosecution is that the complainant Sh. Vakeel Ahmad had lodged a complaint against Gufran Ahmad, Mohd. Irshad, Pradeep Thakur, Mohd. Nazim, Mohd. Imran and Kashif with Joint CP (Crime), PHQ, I.P. Estate, New Delhi alleging commission of offences under Sections 379/383/415/420/467/468/471/472/405/406/409/50 6/120-B/34 IPC. The complainant was running a proprietorship firm in the name and style of 'M/s V.A. Enterprises'. He was also having another partnership firm with the accused Gufran Ahmad in the name and style of 'M/s Allied India Overseas Ltd.' It is stated that accused Gufran Ahmad with the help of co-accused Shagun Dhawan got opened a current account in the name of 'M/s V.A. Enterprises' in the Canara

Bank, Sarita Vihar, Delhi. It is further stated that accused Gurfan Ahmad received cheques from two firms to whom the complainant used to supply materials i.e. 'M/s S.A. Exports' wherein accused Shagun Dhawan was also a partner, and from 'M/s Shaila Anant'. Accused Gufran Ahamd got cheques issued in the name of 'M/s V.A. Enterprises' i.e. the firm of the complainant, and encashed the same in the bank account opened in the Canara Bank, Sarita Vihar, by the accused in the name of firm 'M/s V.A. Enterprises'. It is further stated that the accused got Sales Tax H- Form from 'M/s S.A. Exports' and 'M/s Shaila Anant'. Accused Shagun Dhawan State Vs. Gufran Ahmed PS: EOW despite knowing that the complainant's proprietorship firm was in the name of 'M/s V.A. Enterprises' despite that introduced and helped accused Gufran Ahmad in opening the bank account in the name of 'M/s V.A. Enterprises' in Canara Bank, Sarita Vihar, Delhi.

3. The accused Gurfan Ahmed was booked under Section 419, 420, 468, 471 IPC while his associates were merely kept under the suspects column.

4. After completing the investigative formalities, Charge sheet was filed against the accused Gufran Ahmed in the court on 30.08.2014. 1st Supplementary Chargesheet was filed on 25.01.2016. Ms. Shagun Dhawan was placed in the suspects column in the chargesheet as well as 1st supplementary chargesheet. Only in the 2nd Supplementary Chargesheet filed on 06.04.2016 was she made an accused. Cognizance of the offences under Sections 419, 420, 468, 471/120B IPC was taken on 18.04.2017. Copy of chargesheet was supplied to the accused Gufran Ahmed and then to accused Shagun Dhawan on 30.03.2019.

5. At the stage of charge framing, the Ld. Predecessor noted that the accused Gufran Ahmad also received cheques and H- Form meant for firm of the complainant from 'M/s SA Enterprises' wherein co-accused Shagun Dhawan was also a partner. Shagun Dhawan had herself given H- Form and cheques to the accused Gufran State Vs. Gufran Ahmed PS: EOW Ahmad. She also introduced accused Gufran Ahmad in the bank for opening account in the name of 'M/s V.A. Enterprises'. Thus, the Ld. Predecessor held that accused Shagun Dhawan in criminal conspiracy with the accused Gufran Ahmad handed over him cheques and H-form meant for the firm of the complainant and also helped accused Gufran Ahamed in opening the account in the name of 'M/s V.A. Enterprises', to get those cheques encashed. Under these circumstances, in respect of cheques and H- Form received and dishonestly misappropriated by accused Gufran Ahmad received from firm M/s S.A. Enterprises, he was liable for commission of offence of criminal misappropriation u/s 403 IPC. The Ld. Predecessor also noted that based on above stated facts, the offence u/s 120-B r/w Section 403 IPC was also made out against accused Gufran Ahmad and co-accused Shagun Dhawan. He observed that criminal conspiracy among them was apparent from the handing over of cheques meant for firm of complainant to him and by helping him in opening a bank account in the same name as firm of the complainant.

6. The charge under Section 403/420/120B IPC was framed against Gufran Ahmed and under Section 403/120B IPC against accused Shagun Dhawan on 08.02.2022 in terms of detailed order on charge dated 20.01.2022. The accused persons pleaded not guilty and claimed trial. State Vs. Gufran Ahmed PS: EOW

7. The order on charge was challenged by the accused Shagun Dhawan before the Id. Sessions Court, which vide its detailed order dated 22.03.2023, discharged her.

8. The Id. ASJ observed that after investigation, Investigating Officer categorically stated that the said cheques and Sale Tax H-Forms were delivered to Gufran Ahmad in the capacity of representative of the complainant's proprietorship concern. He noted that as stated and reflected from record, Gufran Ahmad received purchase orders, delivered challans, received payments, and issued acknowledgement of cheques on behalf of 'M/s. V.A. Enterprises' since beginning from 2003 to 2004. After due investigation, Investigating Officer opined that there was no incriminating material against the petitioner. The Id. ASJ also noted that the petitioner was not beneficiary of the said cheque amount. Moreover, the said cheque amount was paid to the complainant in the year 2005 itself. The Id. ASJ also noted that the petitioner introduced Gurfan Ahmad for opening an account in the name of 'M/s. V.A. Enterprises' in good faith and she had no reason to doubt his bonafide. She had handed over the said cheques and Sale Tax H-Forms to him under the belief that Gufran Ahmad was a representative of 'M/s. V.A. Enterprises'. The petitioner was even not aware of the fact that the complainant was proprietor of 'M/s. V.A. Enterprises' and Gufran Ahmad was opening a new account in the name of 'M/s. V.A. State Vs. Gufran Ahmed PS: EOW Enterprises' in order to encash the cheques issued in favour of proprietorship concern of the complainant. The Id. ASJ also noted that the Investigating Officer, in the 1st supplementary charge-sheet, categorically stated that there was insufficient evidence to charge-sheet the petitioner. The Id. ASJ observed that quite surprisingly, the Investigating Officer charge-sheeted the petitioner in 2nd supplementary charge-sheet without any further investigation, based on the investigation already conducted by him. He went on to add that the only reason for charge-sheeting the petitioner was the adverse observation made by the Trial Court, vide order dated 25.01.2016. The Id. Sessions Court observed that it was a settled law that investigating authority cannot be directed to charge-sheet any person. Whenever any closure report is filed qua any accused, the Court may accept the closure report or may take cognizance and summon the accused or direct further investigation. He observed with a sense of concern that the Trial Court did not take recourse to any of these alternatives. The Trial Court passed remarks that Investigating Officer did not charge-sheet the petitioner despite the fact she was the introducer of the fake account and pursuant thereto, the petitioner was charge-sheeted in the 2nd supplementary charge-sheet. Mere introduction of Gufran Ahmad for opening an account in name of 'M/s. V.A. Enterprises' and delivery of the said cheques and Sale Tax H-Forms to him belonging to proprietorship concern of State Vs. Gufran Ahmed PS: EOW the complainant, namely, 'M/s. V.A. Enterprises' in absence of any evidence of dishonest intention on the part of the petitioner, she cannot be prosecuted for offence under Section 403 IPC read with Section 120-B IPC. The Id. Sessions Judge noted that the petitioner had no knowledge that the said cheques and Sale Tax H-Forms exclusively pertained to the complainant's proprietorship concern, namely, 'M/s. V.A. Enterprises'. The petitioner had no knowledge that the said cheques and Sale Tax H-Forms did not belong to Gufran Ahmad and he opened the said account to misappropriate the amount. He observed that there was no material against Shagun Dhawan that she had entered into any conspiracy with Gufran Ahmad in order to misappropriate the amount due to the complainant or she had any dishonest intention to aid Gufran Ahmad to misappropriate the amount belonging to the complainant or withhold Sale Tax H-Forms pertaining to proprietorship concern of the complainant. He accordingly, discharged the accused Shagun Dhawan of the charge under Section

403 IPC read with Section 120-B IPC.

9. After discharge of co- accused Shagun Dhawan, the matter was listed for recording of Prosecution Evidence in this Court.

10. To prove the charge against the accused, the prosecution summoned the complainant Vakeel Ahmed on State Vs. Gufran Ahmed PS: EOW multiple occasions. However, the complainant didn't appear to testify, despite the summons being served well in time. He was accordingly, dropped from the list of witnesses to be examined vide order dated 06.12.2025.

11. The prosecution evidence was closed on 16.01.2026. Considering that there was no incriminating material on record against the accused, the statement of the accused under S. 313 (2) CrPC was dispensed with. Similarly, without any evidence implicating the accused, no purpose was to be served by requiring him to lead defence evidence. Accused submitted that he did not wish to lead any defence evidence. Therefore, right to lead DE was closed.

12. I have heard the arguments addressed by Ld. APP for State and Ld. Counsel for accused and carefully perused the documents on record.

13. The following point arises for determination in the present case: Whether accused Gurfan Ahmed after opening an account in the name of M/s V.A. Enterprises misrepresented to the proprietor of M/s Shaila Anant and induced him to hand over cheque and H-form meant for firm of the complainant to be delivered to accused Gufran Ahmad and thereafter, encashed the same? Whether in doing so accused Gufran Ahmad had conspired with co- accused Shagun Dhawan to get the said cheques and H- State Vs. Gufran Ahmed PS: EOW form meant for the firm of the complainant? Whether the accused Gurfan Ahmed had dishonestly misappropriated money from firm M/s SA Enterprises?

14. The entire edifice of the prosecution's case rested on the testimony of the complainant Sh. Vakeel Ahmed. However, the said complainant has opted not to appear in Court to testify, as can be discerned from his persistent absence despite service of notice in time. It is a settled proposition of law that in cases alleging cheating, the testimony of the complainant is not merely formal but is substantive and indispensable. The complainant alone could have deposed regarding the way he was purportedly deceived by the accused and how the accused had misappropriated money. In the absence of the complainant's testimony, the very edifice of the prosecution case stands eroded. The allegations made in the complaint, howsoever serious, remain unproven assertions unless tested on the anvil of oath and cross-examination.

15. In the present case, there is not even an iota of evidence on record to show that the accused had acted dishonestly to misappropriate money of the complainant's firm or colluded with the co-accused, who was subsequently discharged. Mere filing of a chargesheet or existence of allegations in the complaint cannot take the place of proof. It is also well settled that no adverse State Vs. Gufran Ahmed PS: EOW inference can be drawn against the accused for the lapses or inaction on the part of the prosecution or the complainant. The accused cannot be made to suffer the ordeal of a

criminal trial when the prosecution itself has failed to discharge its primary burden.

16. The right to a speedy trial is a fundamental right under Article 21 of the Constitution. To keep a criminal trial pending indefinitely when the star witness shows no interest in the prosecution is a travesty of justice and a waste of precious judicial time. The absence of complainant from the witness box has created an irreparable evidentiary void which couldn't be filled up by the testimonies of the police/ official witnesses alone and for this reason, this court had dispensed with their examination.

17. It is a cardinal principle of criminal jurisprudence that the prosecution must prove its case against the accused beyond all reasonable doubts. The guilt of the accused must stand on its own feet and cannot be predicated upon the weakness of the defence.

18. In the case at hand, the foundation of the prosecution's charge under Section 403/420/120B IPC has remained unproved. The complainant/victim, who is the most material witness, has conspicuously remained absent. In the absence of the Complainant's testimony, the State Vs. Gufran Ahmed PS: EOW allegations remain unverified. Without proving those allegations, the charge under Section 403/420/120B IPC falls like a house of cards.

19. In view of the above discussion, this Court has no hesitation in holding that the prosecution has miserably failed to prove its case against the accused. The benefit of doubt, which is not a matter of charity but a matter of right, must necessarily go to the accused. Accordingly, accused Gufran Ahmed, is hereby acquitted of the charges u/s 420, 403, 120B IPC levelled against him.

20. File be consigned to Record Room after due compliance.

21. Copy of this judgment be given dasti to the accused/ his counsel against due acknowledgment. Digitally signed by HARSHITA HARSHITA MISHRA MISHRA Date:

2026.01.17 Announced and Signed in the Open Court 18:51:54 +0530 on 16th January, 2026 (Harshita Mishra) Chief Judicial Magistrate Central/Tis Hazari Courts/Delhi 16.01.2026 State Vs. Gufran Ahmed PS: EOW